

BEFORE THE FEDERAL MARITIME COMMISSION

INTERMODAL MOTOR CARRIERS CONFERENCE,
AMERICAN TRUCKING ASSOCIATIONS, INC.

Complainant,

v.

OCEAN CARRIER EQUIPMENT MANAGEMENT
ASSOCIATION, INC., CONSOLIDATED CHASSIS
MANAGEMENT, LLC, CMA CGM S.A., COSCO
SHIPPING LINES CO. LTD., EVERGREEN LINE
JOINT SERVICE AGREEMENT, FMC NO. 011982,
HAPAG-LLOYD AG, HMM CO. LTD., MAERSK
A/S, MSC MEDITERRANEAN SHIPPING
COMPANY S.A., OCEAN NETWORK EXPRESS
PTE. LTD., WAN HAI LINES LTD., YANG MING
MARINE TRANSPORT CORP., AND ZIM
INTEGRATED SHIPPING SERVICES,

Respondents.

FMC Docket No. 20-14

MOTION FOR CONFIDENTIAL TREATMENT

Complainant Intermodal Motor Carriers Conference of the American Trucking Associations (“IMCC”) moves pursuant to 46 C.F.R. §§ 502.5(b), 502.69, and 502.141(j)(1) for the confidential treatment of the non-public version of Complainant’s Reply Brief in Support of Motion for Summary Decision (“Reply Brief”), Complainant’s Reply in support of its Statement of Undisputed Material Facts (“IMCC Reply SUMF”), and Reply Appendix. IMCC further seeks confidential treatment of the non-public version of Complainant’s Motion to Strike Untimely Declarations (“MTS”), and exhibits submitted therewith (“MTS Exhibits”).

On June 9, 2021, the Presiding Officer issued an Order Entering Stipulation and Second Amended Order of Confidentiality (“Order”), which provides for the confidential treatment of certain materials in this proceeding. On April 29, 2022, IMCC moved for confidential treatment

for portions of its Motion for Summary Decision, its Statement of Undisputed Material Facts, and Appendix in support thereof. On May 27, 2022, IMCC further moved for confidential treatment for portions of its Response to Respondents' Motions for Summary Decision, its Responses to Respondents' Statement of Material Facts and Supplemental Statement of Material Facts, and Supplemental Appendix.

Pursuant to the foregoing and the Initial Order in this proceeding, IMCC respectfully requests confidential treatment for portions of IMCC's Reply Brief, IMCC's Reply SUMF, and the MTS. IMCC further requests continued confidential treatment for the Reply Appendix Documents and MTS Exhibits that have been designated as Confidential Outside Counsel Eyes Only ("OCEO") by IMCC and non-party motor carriers pursuant to the Order:

1. The affidavit of Dr. James Langenfeld – This affidavit contains no new expert opinion, but rather articulates broadly what would be required to rebut Dr. Reitzes' Untimely Declaration. Dr. Langenfeld describes his methodology, and references non-party documents and data, including chassis rates paid by motor carriers, which have been designated as Confidential or Confidential OCEO under the Order and that contains commercially and competitively sensitive or otherwise non-public information. The document further references Dr. Reitzes' timely Declarations, which have been designated Confidential or Confidential OCEO.
2. Deposition transcript excerpts and confidential billing data for non-party motor carriers – In response to non-party subpoenas served by Respondents, these non-parties were deposed, during which their corporate witnesses testified regarding commercially- and competitively-sensitive information, including rates that motor carriers charge their customers for chassis, and negotiations for same. The non-party motor carriers also submitted confidential chassis billing data in response to these subpoenas. The public disclosure of this evidence would

damage these non-parties' commercial interests by revealing proprietary and competitively sensitive strategic information.

In addition, IMCC seeks continuing confidential treatment for documents in the Reply Appendix and MTS Exhibits produced and designated by Respondents as Confidential or Confidential OCEO pursuant to the Order, including deposition transcript excerpts.

Pursuant to Rule 502.5(b), IMCC is providing with this Motion the confidential version of its Reply Brief, the IMCC Reply SUMF, the Reply Appendix, the MTS, and MTS Exhibits. Appendices A and B to this Motion list the Bates numbers of the Reply Appendix and MTS exhibits respectively, indicating in the "Confidential" column whether it has been designated Confidential or Confidential OCEO. Information IMCC seeks permission to redact in the public version of the Reply Brief, IMCC Reply SUMF, and MTS is highlighted, including images.

Respectfully submitted,

DATED: June 13, 2022

/s/ W. Stephen Cannon

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Appendix A

Description	Date	BegBates	EndBates	Confidential	CX Prodbeg	CX Prodend
Deposition Transcript of Dave Manning [Excerpts]	11/23/2021	N/A	N/A	CONFIDENTIAL	CX00006312	CX00006312
Deposition Transcript of Ken Tock [Excerpts]	9/22/2021	N/A	N/A	CONFIDENTIAL-OCEO	CX00006313	CX00006315
Deposition Transcript of Thomas Weisberg, Maersk A/S 143(b)(6) [Excerpts]	11/19/2021	N/A	N/A	CONFIDENTIAL-OCEO	CX00006316	CX00006317
Deposition Transcript of Vincenzo Roveccio, MSC 143(b)(6) [Excerpts]	12/3/2021	N/A	N/A	CONFIDENTIAL-OCEO	CX00006318	CX00006319
Deposition Transcript of Douglass Coates (Respondents Expert) [Excerpts]	3/29/2022	N/A	N/A	CONFIDENTIAL-OCEO	CX00006320	CX00006321
2020 CPG billing data	7/6/2021	ContainerPort Group_0000111	ContainerPort Group_0000111	CONFIDENTIAL-OCEO	CX00006322	CX00006322

Appendix B

Description	Date	BegBates	EndBates	Confidential
Deposition Transcript of James Reitzes, Ph.D. [Excerpts]	4/8/2022	N/A	N/A	CONFIDENTIAL-OCEO
Affidavit of James Langenfeld, Ph.D.	6/13/2022	N/A	N/A	CONFIDENTIAL-OCEO

CERTIFICATE OF SERVICE

I certify that, on June 13, 2022, a true and correct copy of the foregoing Motion for Confidential Treatment was filed via electronic mail with the Federal Maritime Commission, and a copy was served via electronic mail on the following counsel:

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